The Wilmot Proviso

Rep. David Wilmot (D-PA) · August 8, 1846

Source: Library of Congress, loc.gov/exhibits/treasures; Records of the U.S. House of Representatives, archives.gov.

Less than three months into the Mexican-American War, Pennsylvania Democrat David Wilmot proposed an amendment to a war-appropriations bill: any territory taken from Mexico must be free of slavery. The proviso passed the House (where free states dominated) but failed in the Senate. It never became law, yet it forced the slavery-extension question into the open and helped break the Second Party System.

Connect: The Wilmot Proviso reopens the exact question the Missouri Compromise (Class 8) tried to close. Why couldn't the 1820 solution work in 1846?

Key Passages

The full text of the proviso

> Provided, That, as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty which may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall be first duly convicted.

Wilmot's own framing — 'White Man's Proviso'

> I would preserve to free white labor a fair country, a rich inheritance, where the sons of toil, of my own race and own color, can live without the disgrace which association with Negro slavery brings upon free labor.

HAPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HAPP Element	Your Analysis
Historical Context *What was happening when this was written?*	The Mexican-American War (1846-48) had just begun, and the U.S. expected to gain large territories from Mexico, reopening the question of slavery in the West.
Intended Audience *Who was the source written for?*	Members of the House of Representatives voting on Polk's war-funding bill, and Northern voters.
Point of View *Whose perspective? Whose is missing?*	David Wilmot, a Pennsylvania Democrat speaking for Northern free-labor whites who wanted the West reserved for white farmers, not mainly an abolitionist.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. Contextualization (DBQ/LEQ, 1 pt): Place the Wilmot Proviso in the broader 1840s-50s sectional crisis (Mexican War, Compromise of 1850, Kansas-Nebraska Act).

2. How does Wilmot's own racial framing complicate calling the Proviso an 'antislavery' measure?

3. Identify ONE later compromise or law that tried to answer the same question the Proviso raised.